

ORIGINAL

(S E R V E D)
(DECEMBER 11, 1990)
(FEDERAL MARITIME COMMISSION)

FEDERAL MARITIME COMMISSION

WASHINGTON, D.C.

December 10, 1990

DOCKET NO. 89-26

THE GOVERNMENT OF THE TERRITORY OF GUAM

v.

**SEA-LAND SERVICE, INC. AND
AMERICAN PRESIDENT LINES, LTD.**

PROCEDURAL ORDER

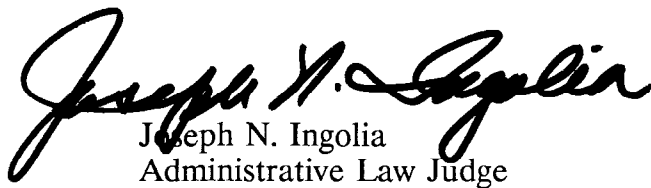
A prehearing conference was held in this proceeding on December 7, 1990. Various matters were discussed extensively at the meeting. The two most important topics had to do with the relevance of those portions of Mr. Kenwell's testimony regarding Sea-Land's service to Hawaii and the Motion to Dismiss, or Alternatively, to Stay Proceedings filed by Sea-Land on December 4, 1990.

As to the relevance question, the entire transcript of Mr. Kenwell's testimony was not yet available. When it is received and considered, a decision will be made. As to the Motion, it is predicated on the decision of the Interstate Commerce Commission

(No. MC-MC-30168), *Puerto Rico Maritime Shipping Authority and PRMMI Trucking Inc.-Petition for Declaratory Order* decided November 9, 1990. Under Commission Rules (46 CFR 502.74), the Complainants have 15 days from the date of service for reply. Once the reply is received and considered a determination will be made as to whether or not it should be referred to the full Commission. If not, the ALJ will decide the question on its merits.¹

During the prehearing conference a question arose as to whether or not discovery should continue during the time Sea-Land's Motion to Dismiss was pending. In the light of the discussion had at the conference, it is hereby,

ORDERED, that discovery should continue in this proceeding and that facts relating to the details of specific movements to determine whether or not they in fact were port to port movements are not only appropriate, but may be necessary to any ruling on Sea-Land's Motion to Dismiss. Sea-Land's participation in such discovery would in no way constitute a waiver of any of its jurisdictional arguments already made or to be made in this proceeding.


Joseph N. Ingolia
Administrative Law Judge

¹It should be noted that in its Motion Sea-Land requests that its Motion be certified by the ALJ to the full Federal Maritime Commission. It further provides that if the ALJ considers the Motion and denies it that its Motion be deemed a motion for leave to appeal pursuant to Rule 153 (46 CFR 502.153). Under that rule the Complainants have 15 days to reply. Should Sea-Land's Motion be denied by the ALJ, Complainants will have 15 days from the date of the service of such denial to reply to the motion for leave to appeal and the appeal.